

person from the courtroom is not a judicial act that cloaks the judge with absolute immunity).^{3/} Judicial immunity also does not exempt the judge from testifying when he has information that is material to a criminal or civil proceeding (Dennis v. Sparks, 449 U.S. at 31). Finally, the Supreme Court has held that although judicial immunity would defeat a civil rights damages action under 42 U.S.C. § 1983 (Pierson v. Ray, 386 U.S. 547), the immunity would not bar an equitable claim or an award of attorney's fees (Pulliam v. Allen, 104 S.Ct. 1970 (1984)).

Judicial immunity also may have derivative application. There is general agreement that clerks of a court are absolutely immune when they perform a ministerial function at the

^{3/} The circuits are divided as to whether immunity is lost where the judge acts in the clear absence of personal jurisdiction. Compare Green v. Maraio, 722 F.2d 1013, 1016-18 (2d Cir. 1983) with Rankin v. Howard, 633 F.2d 844, 848-59 (9th Cir. 1980), cert. denied, 451 U.S. 939 (1981). We believe the Second Circuit has adopted the better rule, that a judge only loses his immunity where he has acted in the clear absence of subject matter jurisdiction.

In Rankin, the Ninth Circuit also held that judicial immunity would not protect the judge accused of having a private, prior agreement to decide in one party's favor because the agreement would not be a judicial act (633 F.2d at 847-48). Although the holding has superficial appeal, it cannot be reconciled with Bradley and Stump, which completely bar any inquiry into a judge's hidden reasons for deciding a matter before the court. The Ninth Circuit instead should have sustained the judge's immunity and left the plaintiff to proceed against the alleged co-conspirators. See Dennis v. Sparks, 449 U.S. 24 (1980) (suit against judge who allegedly conspired with others in corruptly issuing an injunction); see also, Dykes v. Hosemann, 743 F.2d 1488, 1494-95 (11th Cir. 1984).